

Contentious Chamber

Decision on the merits 163/2024 of December 13, 2024

File number: DOS-2020-04373

Subject: Deletion of an email address due to a material error

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, sitting alone;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Mr. X, hereinafter "the complainant"

The defendant:

Y1, registered under company number [...], and Y2, registered under company number [...], both established at [...], represented by Me Guy Schiepers, hereinafter jointly referred to as "the defendant"

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I. Facts and procedure

1.

On September 21, 2020, the complainant filed a complaint with the Data Protection Authority against the defendant. The subject of the complaint concerns the fact that the defendant did not appropriately respond to the complainant's request to delete his personal data, specifically his email address, which the defendant uses to send unsolicited advertising to the complainant. The complainant indicates that he has repeatedly requested deletion. The defendant only responded after some time, stating that the complainant's data had never been included in its system and that the error leading to the sending of emails had been found, after which the defendant apologized. Despite this statement, the complainant continues to receive direct marketing emails from the defendant.

2.

On October 7, 2020, the complaint was declared admissible by the Frontline Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

3.

On November 21, 2022, the parties were informed by the Contentious Chamber of Decision 166/2022 of November 18, 2022, which orders the defendant, under Article 58.2, c) of the GDPR and Article 95, § 1, 5° of the LCA, to comply with the complainant's request to exercise his rights, specifically the right to erasure (Article 17.1 of the GDPR), and to delete the personal data in question within 30 days from the notification of this decision, subject to the defendant submitting a request for substantive processing in accordance with Articles 98 et seq. of the LCA.

4.

On November 24, 2022, the defendant requested a copy of the file (Article 95, § 2, 3° of the LCA), which was transmitted to him on the same day, namely November 24, 2022.

5.

On December 14, 2022, the Contentious Chamber received from the defendant the request for

substantive processing in accordance with Articles 98 et seq. of the LCA, following Decision 166/2022 of November 18, 2022. In this regard, the defendant essentially argues that due to a material error in the spelling of the email address, the complainant received messages that were intended for a client of the defendant. Specifically, the material error concerned a single letter in the surname of the complainant to whom the email address [...] belongs, distinguishing him from the actual client of the defendant who has the email address [...].

6.

On December 23, 2022, the Contentious Chamber decided, based on Article 95, § 1, 1° and Article 98 of the LCA, that the file could be examined on the merits and informed the concerned parties by registered mail of the provisions as stated in Article 95, § 2 and

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pursuant to Article 98 of the LCA. They are also informed, under Article 99 of the LCA, of the deadlines for submitting their conclusions.

The deadline for receiving the complainant's response conclusions was set for

February 3, 2023, and that for the defendant's reply conclusions for March 3, 2023.

7.

On January 30, 2023, the Contentious Chamber received a message from the complainant stating that he had nothing to add to the file, which mentions all the facts in the correct chronological order and which allows the Contentious Chamber, in his view, to make a decision.

8.

Following the absence of response conclusions from the complainant, the defendant also does not submit any reply conclusions.

9.

On December 4, 2024, the defendant informs the Contentious Chamber through his counsel that he wishes to know the decision in this matter.

II. Rationale

10.

The defendant explains that the complainant received a payment reminder email for an outstanding invoice on June 16, 2020. This email was sent by a collaborator of the defendant and was followed by a new reminder sent by email on June 30, 2020, by the defendant's representative on duty. This communication resulted in the complainant's email address being integrated into the personal communication group of the representative, and this address thus ended up in the defendant's files. On June 30, 2020, the complainant reacted by stating that there was no connection between him and the unpaid invoices. On July 31, 2020, a new reminder email was sent by the defendant to the complainant, who immediately responded in the same vein. On September 14, 2020, the complainant received a promotional email from the defendant's representative, after which the complainant immediately requested to cease these unsolicited communications. The defendant reacted on the same day by apologizing to the complainant and indicating that the cause of the problem had been found and that it was a clerical error in transcribing the email address, which explained why messages had been improperly sent to the complainant. On October 2, 2020, the complainant received an email from the defendant's representative with promotions for the following weeks. Following this, the complainant requested the representative to delete his email address. On the same day, the complainant's email address was removed from the personal communication group of the defendant's representative.

11.

Although the defendant claims that the complainant's email address was never part of its automated marketing file, the defendant acknowledges that the complainant's email address ended up in its files, albeit inadvertently, but that this was simply due to a clerical error which subsequently led to the inadvertent sending of correspondence that was not intended for him.

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12.

The Disciplinary Chamber draws attention to the fact that the presence or absence of intent does not constitute a criterion for the processing of personal data within the meaning of Article 4.2) of the GDPR¹. Although it was not the defendant's intention to send the email to the complainant, the mere fact that the email was indeed sent to the complainant is sufficient to qualify this sending as processing. The defendant also expressly indicates that the email address was found in their files. The Disciplinary Chamber therefore finds that the sending of the email falls within the scope of the GDPR as defined in Article 2.1 of the GDPR².

13.

Each processing of data must be lawful within the meaning of Article 5.1 a) of the GDPR in conjunction with Article 6.1 of the GDPR. The Disciplinary Chamber emphasizes in this regard that the defendant wrongly assumed that the complainant was the client whose personal data, and more specifically the email address, had been processed under Article 6.1 b) of the GDPR and that they could write to them to obtain payment for outstanding invoices. The recovery of unpaid invoices constitutes the purpose pursued in this regard (Article 5.1 b) of the GDPR).

14.

It is a fact that with respect to the complainant, neither the principle of lawfulness (Article 5.1 a) of the GDPR) nor the principle of purpose limitation (Article 5.1 b) of the GDPR) were respected, in the absence of any relationship between the complainant and the defendant. The complainant was indeed not part of the defendant's clientele, so no unpaid invoice could be related to them, nor could it give rise to any processing of the complainant's personal data.

15.

However, the Disciplinary Chamber considers that this finding should not lead to any sanction in this case, and it releases the defendant from any prosecution, given that there was no other reason for sending emails to the complainant than a simple spelling mistake in the complainant's name, which differs by only one letter from the actual client of the defendant. As soon as this was established, the defendant immediately took the necessary steps to rectify the material error both in the defendant's address file from which the complainant's data was deleted on September 14, 2020, and in the personal communication group of the representative on duty as a collaborator of the defendant from which the complainant's email address was deleted.

1 Article 4 of the GDPR

"For the purposes of this regulation, the following definitions apply:

[...]

2) 'processing' means any operation or set of operations which is performed on personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;

2 Article 2.1 of the GDPR. This regulation applies to the processing of personal data that is automated in whole or in part, as well as to the non-automated processing of personal data contained in or intended to be included in a filing system.

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October 2, 2020. The removal of the defendant's personal communication group occurred later, as it was only later that it was found that the complainant's email address had also been improperly included. However, the removal of the complainant's email address was carried out immediately when the error was also identified in the personal communication group. The defendant also demonstrates that since October 2, 2020, no further communication has been sent to the complainant.

16.

Although the Contentious Chamber ordered the defendant to comply with the exercise of the complainant's right to erasure in the context of the preliminary proceedings leading to the decision on the merits (Decision 166/2022 of November 18, 2022), it appeared in the proceedings on the merits, based on the detailed presentation of the factual elements, that one could conclude a violation of the purpose limitation principle and the lawfulness principle, but that this was exclusively due to a human

error in the spelling of the email address, so that the correspondence was addressed to the complainant rather than the actual recipient. Human errors can never be completely excluded. What is important in this case is that as soon as the human error was established, the defendant immediately took the necessary steps to delete the complainant's email address and that the latter subsequently received no further communication from the defendant. The Contentious Chamber therefore considers that a decision on the merits aiming for a dismissal regarding the defendant is appropriate.

17.

For the sake of completeness, the Contentious Chamber considers that the access obtained by the complainant to the personal data and outstanding invoices of the defendant's client is not related to insufficient technical and organizational measures that the defendant would have taken to protect the personal data of the client in question against security risks. The fact that the email intended for the defendant's client was sent to the complainant cannot be linked to a problem of security of personal data processed by the defendant. The Contentious Chamber believes that no security measure can completely exclude a human error whereby an email is sent to the wrong recipient. It cannot therefore be concluded that by sending the email intended for a client (who is not the complainant) to the complainant, the defendant would have taken insufficient measures to protect the personal data of the client against security risks, so that no violation of Articles 32 and 33 of the GDPR can be established.